General Terms & Conditions of Sale and Delivery

Clear Terms. Reliable Partnerships.

Draft for legal review. Not yet effective or approved for publication.

Preview note (not part of the supplied terms): The supplied text ends with an incomplete sentence in clause 11.2.

Contents

1. Scope and Application

2. Quotations and Orders

3. Prices and Payment

4. Delivery and Incoterms

5. Quantities, Packaging and Transport Equipment

6. Product Quality and Documentation

7. Inspection and Quality Claims

8. Remedies for Non-Conforming Goods

9. Hazardous Materials and Regulatory Compliance

10. Retention of Title

11. Liability

1. Scope and Application

1.1. These General Terms & Conditions apply to business-to-business sales of industrial products, chemical raw materials and related goods where EximpWorld Ltd (United Kingdom) is expressly identified as the Seller.

1.2. The Seller and Buyer are collectively referred to as the Parties.

1.3. Individually agreed written contractual terms shall prevail over any conflicting provision of these General Terms.

1.4. These Terms shall form part of a contract only where properly communicated and incorporated into that contract.

2. Quotations and Orders

2.1. Quotations are valid for the period expressly stated in the quotation.

2.2. A contract is formed upon the Seller's written order confirmation or another clear written acceptance.

2.3. The order confirmation shall specify the products, quantities, prices, delivery arrangements and payment conditions.

2.4. Once confirmed, an order may be amended only by mutual agreement.

3. Prices and Payment

3.1. Unless otherwise specified, prices are exclusive of applicable taxes.

3.2. First orders from new customers are normally subject to 100% advance payment.

3.3. The Seller may agree alternative payment arrangements, including for a customer's first transaction, at its commercial discretion.

3.4. Any alternative payment terms must be confirmed in writing before acceptance of the relevant order.

3.5. Payments must be made only to the Seller's verified bank account specified in the agreed transaction documents.

3.6. Payment currency, due dates and any agreed credit facilities shall be specified in the order confirmation or other written agreement.

3.7. Late payment shall be addressed in accordance with applicable law and the agreed contractual terms.

4. Delivery and Incoterms

4.1. Delivery arrangements shall be governed by the agreed Incoterms® 2020 rule and the precise named place specified in the order confirmation.

4.2. The passing of risk shall be determined by the agreed delivery rule, subject to applicable mandatory law.

4.3. The Buyer shall provide appropriate receiving facilities, unloading arrangements and safe access where these fall within its responsibilities.

4.4. The Seller shall provide reasonable notice of foreseeable material delivery delays.

5. Quantities, Packaging and Transport Equipment

5.1. Product quantities, measurement methods, packaging and any permitted tolerance shall be specified in the relevant order confirmation.

5.2. Products may be supplied in drums, intermediate bulk containers (IBCs), tankers or other agreed packaging.

5.3. Returnable packaging, cleaning requirements, transport equipment return procedures and demurrage charges shall be agreed where applicable.

5.4. No universal quantity tolerance shall apply unless expressly agreed.

6. Product Quality and Documentation

6.1. The Seller shall supply products conforming to the agreed written specifications.

6.2. The Seller shall provide agreed and legally required documentation, which may include Safety Data Sheets (SDS), Certificates of Analysis (COA) and relevant origin or conformity documents.

6.3. The Buyer is responsible for assessing suitability for its particular intended application where that application has not been expressly agreed with the Seller.

6.4. The Seller remains responsible for its expressly agreed product obligations and applicable legal requirements.

7. Inspection and Quality Claims

7.1. The Buyer should reasonably inspect delivered goods for apparent damage, quantity discrepancies and product identification.

7.2. Apparent discrepancies should be notified promptly, preferably within five business days after receipt.

7.3. Defects not reasonably discoverable upon receipt should be notified promptly after discovery.

7.4. For bulk deliveries, the Parties should, where practicable, arrange documented sampling before discharge. This procedure shall not automatically extinguish legally enforceable claims relating to latent defects.

7.5. Where product quality is disputed, the Parties may agree to independent laboratory analysis.

8. Remedies for Non-Conforming Goods

8.1. Where a material non-conformity attributable to the Seller is established, the Parties shall seek an appropriate and proportionate resolution.

8.2. Depending on the circumstances, the contract and applicable law, available remedies may include replacement, making up a shortfall, price adjustment or refund.

8.3. Returns of hazardous goods shall be subject to an agreed, lawful and safe transport and handling procedure.

9. Hazardous Materials and Regulatory Compliance

9.1. Each Party shall comply with the regulatory requirements applicable to its own activities.

9.2. Relevant requirements may include ADR, UK REACH, EU REACH, CLP, customs, excise, sanctions and international trade controls.

9.3. Transactions involving regulated or licensed products shall be conditional upon the necessary permissions and authorisations.

9.4. The Buyer shall be responsible for lawful storage, handling and use of the goods within its control.

10. Retention of Title

10.1. To the extent valid and enforceable under applicable law, ownership of goods shall remain with the Seller until the relevant purchase price has been paid in full.

10.2. Passing of title and passing of risk may occur at different times.

10.3. Any extended retention-of-title arrangements shall require separate written agreement and legal review.

11. Liability

11.1. Each Party shall be responsible for breach of contract in accordance with applicable law.

11.2. Any limitation of liability shall apply only to